

electronic debits. Such notice will take effect thirty (30) days after Convera receipt thereof.

8.5 Modification of Debit Instructions. The security procedure set forth in this Agreement also applies to any amendments to and cancellations of debit instructions. The Client agrees that any addition/removal of an Authorised User will be promptly updated in the Online Payment System by the Site Administrator or will be promptly communicated to Convera in a writing signed by a duly authorised officer of the Client. Convera will not be bound by any such notice until Convera has had a reasonable opportunity to act upon it.

8.6 E-Debit Execution. If as a result of an error or omission caused by Convera, Convera incorrectly debits the Client's bank account in an amount that exceeds the value of Settlement actually due, Convera will return to the Client the over-debit amount (i.e. the difference between the amount debited and the amount of Settlement actually due). Said return of funds will be made within five (5) business days of Convera receiving written notice of the over-debit. Return of the over-debit amount will be the Client's sole and exclusive remedy for any such error or omission. If as a result of an error or omission caused by Convera, Convera incorrectly debits the Client's bank account in an amount that is less than the value of Settlement actually due, Convera is authorised to initiate an additional debit(s) from the Client's bank account for the additional funds owed by the Client to Convera.

8.7 Dishonoured Settlement. In the event any cheque delivered or telegraphic transfer authorised by the Client is dishonoured by the Client's bank / financial institution, Convera will charge and the Client agrees to pay all processing costs associated with each returned cheque or rejected electronic debit.

8.8 Waiver for Minor Overpayments. If there is a Minor Overpayment, the Client irrevocably waives any right that the Client may claim to have with respect to any such Minor Overpayment. The Client expressly acknowledges that this waiver is made in favour of Convera in light of the administrative costs associated with returning a Minor Overpayment. Notwithstanding the foregoing, Convera may in its absolute discretion, agree to apply the Minor Overpayment to Settlement that is due and owing pursuant to subsequent Services in the event that the Client makes a specific request in this regard.

9. Holding Balances

9.1 Delivery of Funds into the Holding Balance. Upon an Instruction Convera may credit all or any part of any funds purchased by the Client or paid to it by the Client to the Holding Balance. If it does so, the funds will be held by Convera Singapore for the Client as "e-money" under the Payment Services Act, and the making of the payment by the Client will not affect any obligation of the Client to Convera, except to the extent that funds are paid to Convera from the Holding Balance in accordance with an Instruction from the Client.

9.2 Funds owed to Convera or a Convera Group Company. The Client irrevocably requests and directs Convera Singapore to pay to Convera or a Convera Group Company (as the case may be) from the Holding Balance:

- a) any amount due to Convera or a Convera Group Company in relation to any Foreign Exchange Contract requested in an Instruction; and
- b) any other amount due to Convera and/or a Convera Group Company under this Agreement. Each such payment will be taken for the purposes of this Agreement to have been requested in an Instruction given by the Client.

9.3 Commingled Funds. The Client authorises Convera Singapore to mix funds held for the Client in the Holding Balance with funds held for other clients of Convera, provided that Convera Singapore maintains sufficient accounting records to determine what part of the mixed funds are held for the Client.

9.4 Sole-proprietor and Partnership Clients. Convera has the sole discretion to decide whether or not to accept an Instruction to credit funds to the Holding Balance. The Holding Balance facility is not available to a Client which is a sole-proprietor or partnership (save for a limited liability partnership).

10. Safeguarding

10.1 Convera Singapore is required under the Payment Services Act to safeguard relevant money (as defined in section 23(14) of the Payment Services Act) received from or on the account of its clients. Please refer to the Safeguarding Disclosure Notice published on Convera Singapore's website for information about how Convera